

26SMCV00707 26SMCV00707

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Case Number: 26SMCV00707 Hearing Date: July 14, 2026 Dept: M

CASE NAME: Revah, et al.,

v. 595 S. Burlingame, LLC, et al.

CASE NO.: 26SMCV00707

MOTION: Motion

to Compel Deposition

HEARING DATE: 7/14/2026

Legal

Standard

Service of a proper deposition notice obligates a party or "party-affiliated" witness (officer, director, managing agent or employee of party) to attend and testify, as well as produce any document, electronically stored information, or tangible thing for inspection and copying. (CCP § 2025.280(a).) If, after service of a deposition notice, a party deponent fails to appear, testify, or produce documents or tangible things for inspection without having served a valid objection under CCP § 2025.410, the deposing party may move for an order compelling attendance, testimony, and production. (CCP § 2025.450(a).) The motion must be accompanied by a meet and confer declaration, or, when a party deponent fails to attend the deposition, the motion must also be accompanied by a declaration stating that the moving party has contacted the party deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) If the deposition notice included a request for production of documents, the motion to compel attendance must also show good cause to justify the production. (CCP § 2025.450(b)(1).)

A motion to compel production of documents described in a deposition notice must be accompanied by a showing of good cause. (CCP § 2025.450(b)(1).) In other words, the moving party must provide declarations containing specific facts justifying inspection of the documents described in the notice. Courts liberally construe good cause in favor of discovery where facts show the documents are necessary for trial preparation.

The motion to compel must be “made no later than 60 days after the completion of the record of the deposition.” (CCP § 2025.480(b).) This time limit also applies to motions based on a deposition subpoena for production of documents or a business records subpoena. The 60-day time limit runs from the date objections are served because the deposition record is then complete. (*Rutledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164, 1192.)

Analysis

Defendant’s objections to the Richards Declaration are SUSTAINED as to no. 2 and OVERRULED as to no. 1.

Plaintiffs Haim Revah and Lucinda Revah, as Co-Trustees of the Haim Revah and Lucinda Revah Trust Dated June 2, 2005, move to compel Defendant Steven Miller to appear for deposition and to produce documents. Plaintiffs seek monetary sanctions against Defendant in the amount of \$17,719.00. As set forth below, Plaintiffs demonstrate: (1) proper service of a deposition notice on a party, which obliged Defendant to appear; (2) that Defendant agreed to the deposition; and (3) that Defendant failed to lodge a timely, cognizable objection under CCP section 2025.410.

On April 27, 2026, Plaintiffs served a Notice of Taking Oral Deposition of Defendant Steven Miller and Request for Documents for deposition on May 19, 2026, and included document demands in the notice. (Richards Decl. ¶ 4; Long Decl. ¶ 3, Ex. B.) On May 4, 2026, Plaintiff’s counsel followed up with Defendant’s counsel regarding Miller’s deposition noticed for May 19, 2026, but defendant’s counsel never responded. (Richards Decl. ¶ 5; Ex. C.) On May 12, 2026, another counsel for Plaintiffs also emailed Defendant’s counsel, requesting he confirm Miller’s deposition noticed for May 19 and that documents would be produced prior to or

at the deposition, but defense counsel again never responded. (Id., ¶ 6, Ex. D.) On May 13, 2026, Miller served boilerplate objections to the deposition notice, including on grounds of unavailability; insufficient time to respond; failure to specify the materials to be produced; vague, ambiguous and uncertain; relevance; privacy; attorney-client privilege/work product doctrine; and undue burden. (Richards Decl. ¶ 7; Ex. E.) Thereafter, the parties met and conferred, and on May 21, 2026, they agreed in writing that Miller's deposition would proceed on June 10, 2026. (Richards Decl. ¶ 8; Ex. F.) Accordingly, on May 26, 2026, Plaintiffs prepared and served an amended deposition notice, noticing the deposition for the agreed date of June 10, 2026, and included document demands in the notice. (Long Decl. ¶ 4; Ex. G.) On June 3, 2026, Defendant indicated that he intended to file a money judgment appeal bond in the underlying action per CCP § 917.1, and that he would file a motion to stay discovery in this case in light of that appeal bond. (Richards Decl. ¶ 10; Long Decl. ¶ 9.) Notably, Defendant's counsel did not raise any issue concerning Miller's health. (Richards Decl. ¶ 12.) On June 9, 2026, defense counsel forwarded a physician's letter and stated that Miller would not appear for his deposition on June 10, 2026, as previously agreed. (Richards Decl. ¶ 14, Ex. H.) Later that same day, Defendant served untimely objections to the amended deposition notice, on the grounds stated in the June 8, 2026, physician's letter and that this case will be mooted by posting of a bond in the related action. (Long Decl. ¶ 11; Ex. M.)

Plaintiffs demonstrate good cause for production. The Complaint pleads two causes of action against Miller and Burlingame for violation of the UVTA and for the addition of Burlingame as an additional judgment debtor to an underlying judgment in *Revah, et al. v. Miller et al.*, 22SMCV02679. Notably, on February 5, 2026, a \$11,421,355.00 Judgment was entered in favor of the Revahs against Miller in the underlying breach of fiduciary duty action. The Complaint alleges that on December 30, 2024, in the middle of the underlying action, Miller executed a Grant Deed conveying title of real property to Burlingame. (Long Decl. ¶ 6; Ex. K; Compl., ¶¶ 23-28.) Burlingame LLC was formed by Miller on October 1, 2024, allegedly for the sole purpose of holding the subject property. (Long Decl. ¶ 8.) The documents sought by the RPDs generally seek documents concerning the subject transfer, Burlingame and its properties, transfers made by Miller to Susan Marie Paillassou, Miller's assets, estate and debts, the subject property itself, and Defendants' affirmative defenses. Thus, the RPDs are directly relevant to the UVTA, the alter ego theory, and to Defendants' defenses.

Defendant argues that because he has posted an undertaking on appeal, enforcement of the underlying judgment is stayed, and, if Plaintiffs prevail on appeal, Plaintiffs have the ability

to collect the judgment via the undertaking up to \$17,137,066.74, an amount that exceeds

150% of the principal amount of the judgment. In effect, Defendants are arguing that since Plaintiffs may end up collecting the judgment from the undertaking, Defendants could not have caused prejudice to Plaintiffs' collection efforts on a claim. Defendant therefore contends the UTVA claim lacks merit, the entire action is unnecessary and moot, and Miller should not have to be deposed under such circumstances and in light of his medical conditions (discussed further below). Defendant cites no authority that the merits of the controversy might provide good cause to prevent a deposition from going forward. Generally, good cause is directed at the manner, scope, and burden of discovery, not the validity of the underlying claims being litigated. (CCP §§ 2019.030(a); 2025.420(b).)

Even assuming that the merits are properly considered, Defendant has not sufficiently shown why the appeal bond would moot the instant action. Defendant does not provide a reasoned explanation concerning the enforceability of the appeal bond, or evidence that the appeal bond would cover the entire claim. For example, there is a question if Plaintiffs could recover on a bond if they are unsuccessful on appeal, but some portion of the underlying claim/judgment remains. Plaintiffs correctly observe that if the Judgment is reversed or remanded for further proceedings, Plaintiffs still may be creditors with a claim against Defendants under UTVA and setting aside the fraudulent conveyance of the Subject Property may still be appropriate. Additionally, an UTVA claim may be stated on a secured claim. (Civil Code, § 3439.01(b), (c).) This is the same argument Defendant raises in his motion for protective order, which has not yet been fully briefed and argued.

Defendant also argues that a deposition would impose an undue burden on him due to his recent episodes of high blood pressure. His physician warns that additional stress could be highly dangerous and even catastrophic for Defendant's health, posing risks of potentially causing cerebrovascular or cardiovascular events. (Labunsky Decl., ¶¶ 2-6.) The deposition would involve questioning by an adversary attorney for up to seven

hours, which could be stressful. However, Defendant likely waived this objection. Defendant shows that he has purportedly suffered from the cited medical issue since February 2026, yet failed to raise it as an objection until June 9, 2026, the day before the deposition, after he affirmatively agreed to be deposed. These same circumstances suggest Defendant has deployed this medical condition for tactical reasons, rather than a genuine inability to attend a deposition.

Accordingly, the motion is GRANTED.

Sanctions are imposed in the reduced total amount of \$5,260.00. The deposition is to proceed within 10 days with documents produced three calendar days beforehand.